1. Introduction to Law and Cyber Law

What is Law?

- Law is a system of rules made by the State to control human behavior.
- It helps maintain order and discipline in society.

Historical Development of Law

- Based on the **Social Contract Theory**.
- Citizens give power to the State.
- In return, the State governs people through laws.

Jurisprudence (Legal Philosophy)

- Study of "What is Law?"
- Two main schools:

Positivist School

- Law as it **is**.
- Must follow written law.
- Jurists: John Austin, H. L. A. Hart, Hans Kelsen

Natural Law School

- Law as it **ought to be**.
- Unjust laws should not be followed.
- Jurist: Thomas Aquinas

Branches of Law

Private Law

- Protects individual rights.
- Example: Contract Law.

Public Law

- Protects society and the State.
- Example: Constitutional Law.

Criminal Law

- Punishes wrongdoers.
- Serious and minor offences included.
- Victim = Prosecution
- Wrongdoer = Defendant

Civil Law

- Gives compensation to the innocent party.
- Innocent party = Plaintiff
- Wrongdoer = Defendant

Law, Politics, and Economics

- Laws are created through politics.
- Citizens elect representatives to Parliament.
- Karl Marx said economic changes affect law and politics.

Constitutional Law

- Constitution is the highest law of a country.
- Sri Lanka has the written 1978 Constitution.
- United Kingdom has an unwritten constitution.
- Covers:
    - Fundamental Rights
    - Sovereignty
    - Parliamentary procedures

International Law

- Laws created by many countries together.
- Sources:
    - Treaties
    - Conventions

- Customs
- Agreements

Monism

- International law automatically becomes domestic law.

Dualism

- Separate systems.
- Need a special Act to apply international law locally.

Important Cyber Law Conventions

1. Budapest Convention on Cybercrime
2. Berne Convention
3. TRIPS Agreement

Organizations

- World Intellectual Property Organization (WIPO)
- UN Group of Governmental Experts on Cyber Security (GGE)

Rule of Law in Cyber World

- Country must operate according to law.

A.V. Dicey's 3 Principles

1. No punishment without law.
2. Equality before the law.
3. Rights are protected by law.

Importance of Cyber Law

- Protects users online.
- Protects privacy and consumer rights.
- Protects intellectual property.
- Makes cyberspace safer.
- Holds cyber criminals accountable.

2. Computer Crimes

Computer Crimes Act

- Computer crimes in Sri Lanka are governed by the **Computer Crimes Act No. 24 of 2007**.
- Based on the principles of the Budapest Convention on Cybercrime.
- Sri Lanka became the first South Asian country to join the Convention in 2015.

Objectives of the Act

- Punish people who commit computer crimes.
- Prevent computer crimes.
- Provide investigation and prosecution procedures.

Structure of the Computer Crimes Act

Part I – Computer Crimes (Sections 3–14)

Primary Offences

- Sections 3–6
- Main computer crimes.

Secondary Offences

- Sections 7–10
- Data and facilitation crimes.

Inchoate Offences

- Sections 11–13
- Attempts, conspiracy, abetment.

Compensation

- Section 14
- Compensation to victims.

Part II – Investigations (Sections 15–24)

General Investigations

- Sections 15–17

- Appointment of experts.

Powers and Procedures

- Sections 18–22
- Search, seizure, preservation.

Special Provisions

- Sections 23–24
- Admissibility and confidentiality.

Part III – Miscellaneous (Sections 25–38)

Jurisdiction and Evidence

- Sections 25–29

Corporate Liability & International Cooperation

- Sections 30–36

General Provisions

- Sections 37–38
- Language and definitions.

Key Definitions (Section 38)

- Computer
- Computer System
- Computer Programme
- Information

Unauthorized Access (Hacking)

Section 3 – Unauthorized Access

A person is guilty if:

- They access a computer without authority.
- They know they have no permission.

Punishment

- Maximum 5 years imprisonment
- and/or Rs.100,000 fine.

Examples

- Hacking email accounts.
- Using passwords without permission.

Section 4 – Unauthorized Access to Commit an Offence

- Accessing a computer illegally with the intention to commit another offence.

Punishment

- Maximum 5 years imprisonment
- and/or Rs.200,000 fine.

Examples

- Hacking bank systems to steal money.
- Identity theft.

Unauthorized / Illegal Data Modification

Section 5

- Causing a computer to perform a function without authority.
- Includes:
    - deleting data
    - altering data
    - corrupting data

Punishment

- Maximum 5 years imprisonment
- and/or Rs.300,000 fine.

Section 6 – National Security Offences

- Using computers in a way dangerous to:
    - national security

- national economy
- public order

Punishment

- Maximum 5 years imprisonment.

Spreading Viruses

- Covered under Sections 5 and 6.
- Includes harmful programs and malware.

Virtual Child Pornography

- Not directly mentioned in the Act.
- But if committed through Sections 3–6, the Act can apply.
- Section 286B of the Penal Code deals with prevention of child sexual abuse through computers.

Illegal Content on the Internet

Section 7

- Deals with unlawfully obtained data.
- Using illegally obtained data knowingly is an offence.

Other Relevant Acts

Payment Devices Frauds Act No. 30 of 2006

- Covers financial crimes.

Sri Lanka Telecommunications Act No. 25 of 1991

- Covers telecommunication-related offences.

Easy Memory Points

Remember:

- **Section 3** → Basic hacking
- **Section 4** → Hacking to commit another crime

- **Section 5** → Data modification
- **Section 6** → National security threats
- **Section 7** → Illegal data use

Punishment Pattern

- Most offences → **5 years imprisonment**
- Fine amount increases:
    - S3 → 100,000
    - S4 → 200,000
    - S5 → 300,000

3. ICT Related Evidence

1. Nature of Computer Evidence

- Computer evidence = any information stored, processed, or transmitted by a computer used in court.
- It is **intangible** → can be easily altered or deleted.
- Must be:
    1. Identified
    2. Preserved
    3. Collected
    4. Documented

2. Main Laws in Sri Lanka

Important Acts

1. **Evidence (Special Provisions) Act No. 14 of 1995**
2. **Electronic Transactions Act No. 19 of 2006**
3. **Payment Devices Frauds Act No. 30 of 2006**

Evidence (Special Provisions) Act 1995

3. Contemporaneous Recordings (Section 4)

Examples:

- CCTV recordings
- Phone recordings

Conditions for admissibility

- Made using electronic/mechanical means
- Can be replayed/displayed
- Device worked properly
- Not altered/tampered

Cases

- **Abubakeer v Queen** → audio recording admissible
- **R v Dodson Williams** → CCTV admissible

4. Computer Evidence (Section 5)

Examples:

- Images
- Messages
- Social media posts

Conditions

- Must be visible/perceivable
- Computer worked properly
- Information must be accurate

5. General Provisions

Section 6

- Affidavit required when producing evidence.

Section 7

- Notice to opposing party 45 days before trial.

- Opposing party can inspect within 15 days.

Electronic Transactions Act 2006

6. Purpose

- Gives legal recognition to:
    - Electronic records
    - Electronic contracts
    - Electronic signatures

7. Important Sections

- **Section 3** → legal recognition for electronic records
- **Section 4** → electronic transactions valid
- **Section 5** → electronic originals accepted
- **Section 7** → electronic signatures recognized
- **Section 21** → electronic transactions admissible as evidence
- **Section 21(3)** → court presumes e-signatures are genuine

8. Forensic Computing

- Analysis and recovery of digital evidence.
- Used to investigate IT crimes.

9. Burden of Proof

- Computer evidence must be proved **beyond reasonable doubt**.

10. Payment Devices Frauds Act 2006

Covers:

- Card fraud
- Unauthorized transactions
- Misuse of electronic payment systems

Ultra-Short Revision Sheet

1995 Act

- Section 4 → recordings
- Section 5 → computer evidence
- Section 6 → affidavit
- Section 7 → notice procedure

2006 Act

- Legal recognition:
    - e-records
    - e-contracts
    - e-signatures

Key Idea

Computer evidence is:

- Intangible
- Easily tampered
- Needs proper handling and proof.

4. E-Commerce

1. Introduction to E-Commerce

- E-Commerce = commercial transactions done electronically using the internet.
- Related to **Commercial Law**.
- Includes:
    - Buying and selling goods
    - Online services
    - Online banking transactions

Advantages

- Global reach
- Convenience

- Faster transactions

Disadvantages

- Cannot physically inspect goods
- Cyber security risks
- Payment frauds

2. Types of E-Commerce Transactions

Consumer Buyer

- Buys for personal use.

Non-Consumer Buyer

- Buys to resell.

Main Types

B2C (Business → Consumer)

- Business sells to customer.

B2B (Business → Business)

- Supplier transactions.

C2C (Consumer → Consumer)

- Example: Facebook Marketplace.

C2B (Consumer → Business)

- Example: Freelancers offering services.

3. UNCITRAL Model Law on E-Commerce (1996)

- Introduced by United Nations Commission on International Trade Law.
- Gives legal recognition to electronic transactions.
- Prevents discrimination against online transactions.
- Recognizes electronic records.

Electronic Signatures (2001)

- Legal recognition for E-signatures.

- Used to verify identity.

Types

- Simple signature → typed name
- Advanced signature → electronic signing pad

Important

- E-signature ≠ Digital signature

4. UN Convention on Electronic Communications (2005)

Purpose:

- Facilitate international electronic contracts.

Main points:

- Promotes global E-Commerce.
- Validates cross-border electronic transactions.
- Deals with:
    - Dispatch
    - Receipt
    - Delivery of goods

Important

- Shipping laws may apply in international trade.

5. WTO and WIPO

WTO

- Promotes E-Commerce.
- Removes trade barriers and digital taxes.

WIPO

- Protects intellectual property online.
- Handles:
    - Copyright

- Online piracy

6. Electronic Transactions Act No. 19 of 2006

Purpose:

- Promote E-Commerce in Sri Lanka.
- Give legal validity to electronic evidence.

Covers:

- Domestic E-Commerce transactions
- Transactions connected to Sri Lankan nationals

7. E-Contracts

- Contracts made electronically without physical interaction.

Features

- Offer + Acceptance required.
- Validity depends on E-signature.

8. Cyber Security in E-Commerce

Common Threats

- Hacking
- Identity theft
- Fraud

Protection Methods

- Encryption
- Secure payment gateways

9. Competition Law in E-Commerce

Purpose:

- Ensure fair competition.

Prevents:

- Market domination

- Predatory pricing

Protects:

- Small businesses

10. E-Banking

Includes:

- Internet banking
- Mobile banking
- ATM services
- Digital wallets

Advantages

- Convenience
- Fast transactions

Disadvantages

- Cyber security threats
- Frauds

Solution

- Strong security systems in banking apps

Ultra-Short Revision Sheet

Main Laws

- UNCITRAL Model Law 1996
- UN Convention 2005
- Electronic Transactions Act 2006

Main Types

- B2C
- B2B
- C2C

- C2B

Key Concepts

- E-Contracts
- E-Signatures
- Cyber Security
- E-Banking

Organizations

- WTO → promotes trade
- WIPO → protects IP

5. Intellectual Property Rights (IPR) in ICT – Short Memory Notes

1. Introduction to Intellectual Property (IP)

- Intellectual Property (IP) = creations of the human mind with commercial value.
- IP law protects these creations.
- IP is intangible and commonly used in ICT/cyberspace.

Purpose of IPR

- Protect creators and innovators
- Encourage innovation
- Give economic/commercial benefits

Examples in ICT

- Software programs
- Mobile apps
- Databases
- Websites

2. Main Types of IPR

Copyright

- Protects books, software, images, art, etc.

Patent

- Protects inventions.

Trademark

- Protects logos/symbols of businesses.

3. History of IP Law

Copyright

- Started with printing.

Patents

- Developed during Industrial Revolution.

Trademarks

- Developed with commercial businesses.

4. TRIPS Agreement & Sri Lankan Law

TRIPS Agreement

- Trade-Related Aspects of Intellectual Property Rights.
- Managed by WTO.
- Sets minimum global IP standards.

Sri Lankan Law

- Intellectual Property Act No. 36 of 2003
- Aligns with TRIPS and global standards.

5. Computer Program Copyright

- Software protected as a literary work.
- Copying/pirating software becomes illegal after copyright protection.

6. Patent Rights & Software Licenses

Patent Rights

- Software itself may not be patentable.

- Technology behind software may be patented if it is a new invention.

Software License

- Legal agreement explaining how software can be used.

7. Trademarks & Trade Names

Trademark

- Symbol/logo identifying goods or services.

Trade Name

- Name under which a business operates.

Law

- Governed under Part V of Intellectual Property Act 2003.

8. Trademark Registration Process in Sri Lanka

Steps

1. Trademark search
    - Check whether similar mark already exists.
2. Classification
    - Based on Nice Agreement 1957.
3. Trademark application
4. Submit two copies
    - Size: 10 cm × 10 cm
5. Examination
6. Publication in Government Gazette
    - 3 months allowed for objections.
7. Certificate of registration
    - Issued if no objections.
8. If objections exist
    - Applicant may challenge them.

9. Validity
    - 10 years and renewable.

9. Important Trademark Rules

- Trademark should avoid customer confusion.
- Similar trademarks may be refused.
- Registration gives legal validity.

10. Trademark Infringement

First Step

- Send Letter of Demand (LOD).

LOD may request:

- Stop using trademark
- Compensation
- ADR process

11. Alternative Dispute Resolution (ADR)

Types

- Mediation
- Arbitration

If ADR fails

- File case in court.

Court Remedies

- Injunction
- Compensation/Damages
- Legal costs

12. Domain Name Disputes

- Governed by UDRP
  (Uniform Domain Name Dispute Resolution Policy)

13. Data Protection & Cloud Sourcing

Data Protection

- Protects personal and sensitive data.

Cloud Risks

- Data breaches
- Unauthorized access

14. Infringement of IP

If copyright/patent/trademark infringed:

1. ADR
2. Court action if ADR fails

Remedies

- Injunction
- Compensation

15. Criminal Offences in IPR

Violations may result in:

- Imprisonment
- Fines
- Confiscation

16. Unfair Competition & Trade Secrets

Unfair Competition

- Illegal business practices causing IP violations.

Undisclosed Information

- Trade secrets/confidential information protected as IP.

Ultra-Short Revision Sheet

Main Types of IPR

- Copyright
- Patent
- Trademark

Main Sri Lankan Law

- Intellectual Property Act No. 36 of 2003

International Law

- TRIPS Agreement

Trademark Registration

Search → Classification → Application → Examination → Gazette → Certificate

Remedies for Infringement

- LOD
- ADR
- Court
- Injunction + Compensation

Important Organizations

- WTO → manages TRIPS
- UDRP → domain disputes

6. Short Note: Rights, Responsibilities and Limits Online

1. Human Rights in the Online Environment

- Human rights that apply in the physical world also apply online.
- Important online rights include:
    - Freedom of expression
    - Right to privacy
    - Right to access information

2. International Legal Framework on Human Rights

Main international laws protecting human rights:

- United Nations Universal Declaration of Human Rights (UDHR)
- International Covenant on Civil and Political Rights (ICCPR)
- International Covenant on Economic, Social and Cultural Rights (ICESCR)

3. Domestic Legal Framework in Sri Lanka

- Human rights are broad rights entitled to all people.
- Fundamental rights are the most important and protected rights.
- Chapter III of the Constitution of Sri Lanka covers fundamental rights.
- Articles 10–14 provide major protections.

4. Fundamental Rights under the Sri Lankan Constitution

Article 10 – Freedom of Thought, Conscience and Religion

- Protects freedom of religion and beliefs.

Article 11 – Freedom from Torture

- Prohibits torture and cruel, inhuman, or degrading treatment.

Article 12 – Right to Equality

- All persons are equal before the law.
- No discrimination based on race, religion, language, caste, sex, political opinion, or place of birth.

Article 13 – Freedom from Arbitrary Arrest

- Arrests must follow legal procedures.

Article 14 – Key Online Rights

- **14(1)(a):** Freedom of speech and publication (posting online content)
- **14(1)(b):** Freedom of peaceful assembly (webinars, online meetings)
- **14(1)(e):** Protection of privacy and personal data
- **14(1)(g):** Freedom of association (joining groups and communities)

- **14(1)(h):** Freedom of movement (accessing online platforms)

Article 14A – Right to Information

- Added by the 19th Amendment.
- Gives citizens access to government-held information.
- Strengthened by the Right to Information Act.

5. Remedies for Rights Violations

- Supreme Court of Sri Lanka has sole jurisdiction over fundamental rights cases.
- Cases must generally be filed within **one month** (Article 126).
- Article 17 provides the right to seek remedies.
- Human Rights Commission of Sri Lanka can also investigate complaints.

6. Internet Freedom

- People can express opinions, publish content, and access information online.
- This freedom is **not absolute**.
- Restrictions apply to:
    - Hate speech
    - Defamation
    - Incitement to violence
- Article 15 of the Constitution allows reasonable restrictions.

7. Regulation of Social Media

Relevant laws:

- Computer Crimes Act
- Penal Code of Sri Lanka

Regulatory body:

- Telecommunications Regulatory Commission of Sri Lanka (TRCSL)

8. Limitations on Internet Use

Access may be restricted due to:

- National security
- Public emergencies
- Civil unrest
- Cultural values
- Age restrictions

Governments may:

- Block websites
- Restrict social media
- Control telecommunications

9. Right to Privacy and Data Protection

- Personal data is protected under the Personal Data Protection Act.
- Legal action can be taken if personal data is misused.

7. Short Note: Employer–Employee Relationship in the ICT Society

1. Introduction

- ICT has changed the traditional employer–employee relationship.
- Work can now be remote, flexible, and across different time zones.

2. Contract of Service vs Contract for Service

Contract of Service

- Employment contract between employer and employee.
- Governed by labour law.
- Employee receives legal protections and benefits.

Contract for Service

- Independent contractor relationship.
- Governed by contract law, not labour law.

- Examples: Electrician, Painter, Plumber.
- Contractors are usually self-employed.

3. Tests to Distinguish Employment Relationships

1. Control Test

- Employer controls how, when, and where work is done.
- High control = Contract of Service.
- Low control = Contract for Service.

2. Business Integration Test

- Worker is part of the business.
- Indicators: Uniform, ID card, participation in company events.

3. Economic Reality Test

- Examines who invested capital and who bears financial risk.
- Employer bears risk = Contract of Service.

4. Multiple (Overall) Test

- Combines all tests.
- Most commonly used today.

4. Types of Employment Contracts

1. Permanent Employment – No end date; full benefits.
2. Fixed-Term Contract – Specific period or project.
3. Part-Time Contract – Limited working hours.
4. Casual/Contract-Based Employment – Work when needed.
5. Zero-Hours Contract – Hours vary, but work must be completed quickly.
6. Internship/Apprenticeship – Focus on training and skill development.

5. Rights and Responsibilities

Rights of the Employer

- Recruit employees.

- Assign and monitor work.
- Take disciplinary action.

Responsibilities of the Employer

- Pay wages and benefits.
- Provide a safe workplace.
- Protect employee privacy and data.

Rights of the Employee

- Receive salary and benefits.
- Be treated with dignity and respect.

Responsibilities of the Employee

- Perform duties honestly and carefully.
- Protect employer property.

6. Features of ICT-Based Employment Contracts

- Remote work.
- Online communication.
- Different time zones.
- Digital surveillance.
- Cyber misconduct issues.
- Ownership of digital work.

7. Use of Email and Internet at Work

- Employers provide official email and internet access.
- Employees should use them only for official purposes.

8. Criminal Liability

Employee Liability

- Online fraud.
- Hacking.

- Sending threatening emails.

Employer Liability

- Encouraging illegal acts.
- Illegal surveillance.

9. Privacy in the Digital Workplace

Employee Privacy

- Biometric attendance.
- Phone calls.
- Browsing history.

Employer Privacy

- Confidential information.
- Future projects.
- Business strategies.

10. Intellectual Property Rights (IPR)

- Work created during employment usually belongs to the employer.
- Includes:
    - Software
    - Databases
    - Designs
    - Digital content

11. Confidential Information and Trade Secrets

Confidential Information

Information that:

- Is not publicly available.
- Was accessible to the employee.

- Was misused without permission.
- Caused financial loss or reputational damage.

Remedies

- Damages/Compensation.
- Injunctions.

Non-Disclosure Agreement (NDA)

- Legal agreement preventing disclosure of confidential information.

Trade Secrets

- Special confidential information providing competitive advantage.
- Protected through NDAs, access controls, and security policies.

Restraint of Trade Clause

- Prevents employees from starting competing businesses or attracting the same clients.